



Date:

Sourcing Agreement

This Sourcing agreement is between :

Client (Individually and collectively "The Client") :

AND

Sourcer ("The Sourcer")

Truehold Advisory

154 Bishopsgate, EC2M 4LN, London

board@truehold.co.uk

BACKGROUND

- The Client is of the opinion that the Sourcer has the necessary qualifications, experience and abilities to provide sourcing services to the Client.
- The Sourcer is agreeable to providing such sourcing services to the Client on the terms and conditions set out in this Agreement.

IN CONSIDERATION OF the matters described above and of the mutual benefits and obligations set forth in this Agreement, the receipt and sufficiency of which consideration is hereby acknowledged, the Client and the Sourcer (individually the "Party" and collectively the "Parties" to this Agreement) agree as follows:

The Services

The Client agrees to engage the Sourcer to provide the following sourcing services:

- Research and scan the market.
- Offer access to a variety of properties, including off-market deals.
- Advise on suitable local areas in London.
- Offer access to important industry contacts.
- Put together property deals.
- Act as a middleman between Client and the property manager(individual or company) to any matter related with booking the property.
- Negotiate the prices, terms and further requests in favor of the Client.

- Introduce and dynamically represent the Client in a way that the Client can get selected between other applicants.
- Prioritise the Client among other applicants for the property that the Client expressed the highest interest for 24h. The Client has to make a decision on that property within this time frame except as otherwise agreed in writing. After this time frame the Sourcer will proceed with presenting further options to the Client.
- The Services will include any other tasks agreed in writing below:

TERM OF AGREEMENT

- The term of this Agreement (the "Term") will begin on the date of this Agreement and will remain in full force and effect until the completion of the Services, subject to earlier termination as provided in this Agreement. The Term may be extended with the written consent of the Parties.

PERFORMANCE

- The Parties agree to do everything necessary to ensure that the terms of this Agreement take effect.

CURRENCY

- Except as otherwise provided in this Agreement, all monetary amounts referred to in this Agreement are in GBP.

PAYMENT

- The Sourcer will charge the Client for the Services as follows (the "Payment"):
- The Client will pay the Sourcer a **sourcing fee of £**
- The Client will receive **£** for each referred Client upon signing this Agreement.

Refund Reference:

The Sourcing Fee is **non-refundable except in the specific circumstance described in Clause "Refund After Eight Viewings."**

Under that clause, if the Client attends eight (8) completed viewings without securing a property, the Client will be entitled to a **100% refund** of the Sourcing Fee.

TERMINATION OF THE AGREEMENT

- In the event that this Agreement is terminated by the Client prior to completion of the Services but where the Services have been partially performed, the Sourcer will be entitled to the full sourcing fee.
- The Client will not be reimbursed for any expenses incurred in connection with receiving the Services of this Agreement.

TERM OF AGREEMENT

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TRADE SECRETS

- Trade secrets (the "Trade Secrets") include but are not limited to any data or information, technique or process, tool or mechanism, formula or compound, pattern or test results relating to the business of the Client, which are secret and proprietary to the Client, and which give the business a competitive advantage where the release of that Trade Secret could be reasonably expected to cause harm to the Client.
- The Consultant agrees that they will not disclose, divulge, reveal, report or use, for any purpose, any Trade Secrets which the Consultant has obtained, except as authorised by the Client or as required by law. The obligations of confidentiality will apply during the Term and will survive indefinitely upon termination of this Agreement.

CAPACITY/INDEPENDENT CONTRACTOR

- In providing the Services under this Agreement it is expressly agreed that the Sourcer is acting as an independent contractor and not as an employee. The Sourcer and the Client acknowledge that this Agreement does not create a partnership or joint venture between them, and is exclusively a contract for service.

NOTICE

- All notices, requests, demands or other communications required or permitted by the terms of this Agreement will be given in writing via email.

INDEMNIFICATION

- Except to the extent paid in settlement from any applicable insurance policies, and to the extent permitted by applicable law, each Party agrees to indemnify and hold harmless the other Party, and its respective directors, shareholders, affiliates, officers, agents, employees, and permitted successors and assigns against any and all claims, losses, damages, liabilities, penalties, punitive damages, expenses, reasonable legal fees and costs of any kind or amount whatsoever, which result from or arise out of any act or omission of the indemnifying party, its respective directors, shareholders, affiliates, officers, agents, employees, and permitted successors and assigns that occurs in connection with this Agreement. This indemnification will survive the termination of this Agreement.

ADDITIONAL CLAUSE

REFUND AFTER EIGHT VIEWINGS

- If the Sourcer has arranged and the Client has attended eight (8) property viewings without securing a property, the Client will be entitled to request a 100% refund of the sourcing fee. Missed or cancelled viewings by the Client do not count toward the eight viewings. Upon issuing the refund, this Agreement will automatically terminate and the Sourcer will have no further obligation to continue sourcing properties for the Client.

15. _____

MODIFICATION OF AGREEMENT

- Any amendment or modification of this Agreement or additional obligation assumed by either Party in connection with this Agreement will only be binding if evidenced in writing signed by each Party or an authorised representative of each Party.

ENTIRE AGREEMENT

- It is agreed that there is no representation, warranty, collateral agreement or condition affecting this Agreement except as expressly provided in this Agreement.

TITLES/HEADINGS

- Headings are inserted for the convenience of the Parties only and are not to be considered when interpreting this Agreement.

GENDER

- Words in the singular mean and include the plural and vice versa. Words in the masculine mean and include the feminine and vice versa.

GOVERNING LAW

- This Agreement will be governed by and construed in accordance with the laws of England.

SEVERABILITY

- In the event that any of the provisions of this Agreement are held to be invalid or unenforceable in whole or in part, all other provisions will nevertheless continue to be valid and enforceable with the invalid or unenforceable parts severed from the remainder of this Agreement.

TIME OF THE ESSENCE

- Time is of the essence in this Agreement. No extension or variation of this Agreement will operate as a waiver of this provision.

WAIVER

- The waiver by either Party of a breach, default, delay or omission of any of the provisions of this Agreement by the other Party will not be construed as a waiver of any subsequent breach of the same or other provisions.

Date:

Sign here if you agree with all the terms above :

The Client :

The Sourcer :